We are still working under a substantively cis-centric—even if ostensibly trans-inclusive!—framework of gender equality under which trans women are analyzed in one way or another as gender-nonconforming males.

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Essentializing conception of sex and gender

Transmisogynistic conception of trans women as “men [sic]” who “do wear dresses and makeup, or otherwise act femininely,” *Smith*, 378 F.3d at 574 (emphasis in original)

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A passable theory of (trans)gender equality must take seriously *both* the gender (the metaphysics and epistemology) *and* the equality (the political and legal philosophy).

My claim